

**IN THE CIRCUIT COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, STATE OF FLORIDA
Circuit Civil Division D**

**COLONIAL MANOR HOMEOWNERS'
ASSOCIATION, INC.,
Plaintiff(s),**

v.

Case No.: 2022-CA-4348

**COLONIAL MANOR MHC
HOLDINGS LLC,
Defendant(s).**

**ORDER OF DISMISSAL AND
ORDER DIRECTING CLERK OF COURT TO CLOSE FILE**

THIS CAUSE came before the court on July 10, 2026, at 8:30 a.m., for a Case Management Conference and on the court's Motion to Dismiss, pursuant to Florida Rule of Civil Procedure 1.420(e). This case was one of 37 cases that were noticed for hearing.¹

Upon a review of the record for each case, there had been no activity, by filing of pleadings, order of court, or otherwise, for a period of 10 months immediately preceding the service of the court's notice. In those cases where an order staying the action had been issued or there was a stipulation for stay that was approved by the court, the court still noticed the matter for a Case Management Conference, as a significant or inordinate period of time had passed since the stay was entered.² A number of cases had no proof of service in the file, and others simply stopped progressing for no discernible reason. In order to allow for a full presentation of the substantive and procedural posture of the case, the court noticed the hearing as evidentiary in nature.

¹ In each case, the court's *Notice of No Record Activity, Court's Motion to Dismiss Pursuant to Fla. R. Civ. P. 1.420(e), Notice of Evidentiary Hearing on Court's Motion to Dismiss, and Notice of Case Management Conference* was sent out on or around April 14, 2026.

² Some stays related to federal bankruptcy proceedings, others concerned an insolvent insurer, and the rest were going to binding arbitration proceedings.

As for this particular case, the court hereby **FINDS, ORDERS, and ADJUDGES:**

FAILURE TO PROSECUTE: The court finds that: no activity, by filing of pleadings, order of court, or otherwise, occurred on the face of the record in the 10 months immediately preceding the service of the court's notice and no record activity occurred within the 60 days immediately following the service of the court's notice; no stay was issued or approved prior to the expiration of the 60 day period; and no good cause has been shown to the court why this action should remain pending. Therefore, this action, including all claims, counterclaims, crossclaims, and third party claims, are hereby **DISMISSED, without prejudice.** See Fla. R. Civ. P. 1.420(e).

FAILURE TO APPEAR AT CASE MANAGEMENT CONFERENCE: The party seeking affirmative relief failed to appear at the duly noticed Case Management Conference. This matter is **DISMISSED without prejudice.** See Fla. R. Civ. P. 1.200(j)(6).

LIS PENDENS DISSOLVED: Be it now further **ORDERED and ADJUDGED** that, if a notice of *lis pendens* has been filed in connection with a claim for affirmative relief that is dismissed by the court pursuant to Fla. R. Civ. P. 1.240(e), the notice of *lis pendens* connected with the dismissed claim is **AUTOMATICALLY DISSOLVED** at the same time, and this notice shall be recorded with the court's order of dismissal.

CLERK TO CLOSE CASE: Be it now further **ORDERED and ADJUDGED** that the Manatee County Clerk of Court shall mark and record this case as **CLOSED**. If specific statutory, legislative, executive, or procedural requirements exist that require the Clerk to record and report the closure of this case by some other nomenclature, the Clerk shall so record and report the closure of this case (i.e., "Closed-Consolidated," "Closed-Transferred," or the like), as long as the end result is that this matter is recorded and reported as "Closed" or the equivalent of "Closed."

DONE AND ORDERED at Bradenton, Manatee County, Florida.



eSigned by STEPHEN WHYTE, Circuit Judge 07/17/2026 17:07:19 iA-UWGF3

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Order of Dismissal

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